

		threat of “minority abuse.” Nor is there any merit to Defendant’s argument that this motion is “not ripe,” because Perch is a “necessary and indispensable party.” (Opp’n at pp. 17-18.) Defendant fails to cite any authority showing that an LLC—with two members and two managers, all of whom are before the court—must appear in its own capacity, when the procedural reality is that Plaintiff and Defendant are the only two managers and members that have any ownership interest in Perch. In any event, Defendant waived this objection by failing to raise it by demurrer or in his answer. (Code Civ. Proc., § 430.10, subd. (d).) Finally, the Court finds the <i>discretionary</i> provision of CCP section 437c, subdivision (e), is not applicable. No continuance is warranted because the pending discovery does not describe evidence essential to opposing the motion, given the Court’s reasons for granting the motion. (Code Civ. Proc., § 437c, subd. (h).) The OSC is discharged. The case management conference is continued to December 14, 2026 at 10:00 a.m. in Department C27. Plaintiff shall give notice of the ruling.
108	2024-01445758 Avesta Aesthetics Inc. vs. Ford	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference The demurrer of Defendants Laleh Ford, Dr. Kaveh Karandish, and CDM Medical, Inc. to plaintiff Avesta Aesthetics Inc.’s first amended complaint (“FAC”) is overruled. [ROA # 73.] Defendants motion to strike is granted without leave to amend as to paragraphs 54, 63, and 74; it is granted with 15 days leave to amend as to paragraph 75. [ROA #69.] The case management conference is continued to December 14, 2026 at 10:00 a.m. in Department C27. Moving party is ordered to give notice.
109	2024-01445914 CDM Medical, Inc. vs. Avesta Aesthetics Inc.	1. Case Management Conference The case management conference is continued to December 14, 2026 at 10:00 a.m. in Department C27.